

Court No. - 34

Case :- WRIT - C No. - 7205 of 2019

Petitioner :- Mukhtar Ahmad

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Jeetlal Yadav, Sanjeet Kumar Yadav

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajendra Kumar-IV, J.

1. Sri S.K. Yadav, Advocate, appearing for petitioner and learned Standing Counsel for respondents fairly stated that the dispute raised in this writ petition can be decided on the basis of record of writ petition itself. Therefore, with the consent of learned counsels for parties, we proceed to decide this case finally at this stage without inviting any counter affidavit.
2. Petitioner earlier approached this Court in Writ Petition No. 21918 of 2017 which was disposed of vide judgment dated 18.05.2017 passing following order:

“Ms. Usha Kiran holding brief for Mr. Vishnu Narayan Pandey, learned counsel for the petitioner and Mr. Suman Kumar Yadav, learned counsel for the respondent Nos. 2 to 4. The sole grievance which is raised in this writ petition is with respect to an electricity meter said to be installed in the premises of the petitioner.

The petitioner asserts that although the respondents have been informed on previous occasions that the meter is defective, no steps as such have been taken by them for redressal of his grievances. We note that issues and complaints of this nature would warrant examination by the concerned authority in accordance with the procedure prescribed under Clause 5.9 of the Electricity Supply Code 2005.

Accordingly, we dispose of this writ petition, leaving it open to the petitioner to seek redressal of his grievance in accordance with the procedure prescribed under Clause 5.9 of the Electricity Supply Code 2005.

3. Pursuant thereto, it is contended that petitioner made a representation dated 05.10.2017 but Executive Engineer, Urban Electricity Distribution Division, KESCO by order dated 10.10.2017 has directed petitioner to first deposit amount of compounding fee else his representation will not be decided.
4. When questioned, learned counsel appearing for respondents-2, 3 and 4 could not dispute that there is no such provision which requires a person to deposit compounding fee first and unless such fee is not deposited, his

representation (under Clause 5.9 of U.P. Electricity Supply code, 2005 in the present case), shall not be decided. Order dated 10.10.2017, therefore, is clearly illegal.

5. The writ petition is allowed. Order dated 10.10.2017 is hereby set aside. The respondent-competent authority is directed to take a final decision on petitioner's representation dated 05.10.2017 expeditiously and, in any case, within one month from the date of production of a certified copy of this order.

Order Date :- 1.3.2019

PS